

24NWCV04250 24NWCV04250

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Case Number: 24NWCV04250 Hearing Date: July 28, 2026 Dept: SED

LILIA VIRGEN V. DE LA PENA

EYE CLINIC, A MEDICAL GROUP, INC.

CASE NO.: 24NWCV04250

HEARING: 07/28/2026 @ 9:30 a.m.

#7

TENTATIVE ORDER

Defendant De la Pena Eye

Clinic's motion for summary judgment is GRANTED.

Moving party to give notice.

Defendant De la Pena Eye Clinic (Defendant) moves for summary judgment as to the Complaint filed by Plaintiff Lilia Virgen (Plaintiff).

Background

On November 6, 2024, Plaintiff filed the operative Complaint against Defendant and Does 1 through 25, inclusive, asserting (1) Premises Liability; (2) Negligence; and (3) Strict Negligence in Tort. Plaintiff alleges that while attending an appointment at Defendant's eye clinic on May 30, 2024, she was directed to sit in a waiting room chair that collapsed beneath her, causing her to suffer personal injuries.

On January 22, 2026, the Court granted Defendant's motion to deem Requests for Admissions, Set One admitted.

On February 10, 2026, filed the instant motion for summary judgment.

No opposition or reply was filed.

Request for Judicial Notice

Defendant requests judicial notice of the Complaint and the Court's order deeming the Request for Admissions (RFA), Set One, Admitted.

The Court GRANTS Defendant's requests for judicial notice. (Evid. Code § 452(d), (h).)

Legal Standard

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc., §437c(c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at § 437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence...." (*Aguilar*, *supra*, 25 Cal.4th at 865-66.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action; however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Code Civ. Proc., §437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion.

(D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

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Factual Background

Plaintiff alleges that she sustained injuries after falling from a chair at Defendant's facility on May 30, 2024, and filed this action asserting causes of action for premises liability, negligence, and strict liability. (Defendant's Separate Statement of Undisputed Material Facts (UMF) No. 1.) During discovery, the Court deemed Defendant's RFAs admitted. As a result, Plaintiff is deemed to have admitted that Defendant did not breach any duty owed to her, that Defendant met the applicable standard of care, and that Defendant did not cause any of Plaintiff's alleged injuries or damages. (UMF Nos. 2-4.)

Analysis

Defendant argues that summary judgment is warranted because Plaintiff's failure to respond to Defendant's RFA resulted in the Court deeming the requests admitted. (Motion, pp. 1-2.) Defendant contends these deemed admissions constitute binding judicial admissions establishing that Defendant did not breach any duty owed to Plaintiff, met the applicable standard of care, and did not cause Plaintiff's alleged injuries or damages, thereby negating essential elements of Plaintiff's premises liability, negligence, and strict liability causes of action. (Motion, p. 2.) Defendant further argues that, independent of the deemed admissions, the strict liability claim fails because Defendant is a provider of medical services rather than a seller or manufacturer of a product and therefore is not subject to strict products liability. (Id. at pp. 2-3.)

"Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action" (Code Civ. Proc., § 2033.410, subd. (a); *Kelly v. New West Federal Savings* (1996) 49 Cal.App.4th 659, 672.)

The Court finds that Defendant has met its initial burden by establishing that Plaintiff is deemed to have admitted:

1.
Defendant did not breach any duty owed to

Plaintiff on May 30, 2024 (RFA No. 1.);

2.

Defendant met the applicable standard of care as it relates to Plaintiff on May 30, 2024 (RFA No. 2.);

3.

Defendant did not cause any of the injuries alleged in the Complaint (RFA No. 3.); and

4.

Defendant did not cause any of the damages alleged in the Complaint (RFA No. 4.).

(Defendant's Evidence, Ex. 2.)

These judicial admissions establish the absence of breach and causation, thereby negating essential elements of Plaintiff's premises liability, negligence, and strict liability causes of action.

The burden therefore shifts to Plaintiff to demonstrate the existence of a triable issue of material fact.

Plaintiff filed no opposition and submitted no evidence creating a triable issue.

Accordingly, the Motion for Summary Judgment is GRANTED.

Conclusion

Based on the foregoing, Defendant De la Pena Eye Clinic's motion for summary judgment is GRANTED.